

KALE REALTY

ONE BROKERAGE SUED ITS MLS. AND WON.

The rule it broke down might be sitting in your own
MLS's handbook.

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**"MLSS ARE A
GROUP OF DIRECT
COMPETITORS
TELLING THEIR
COMPETITORS HOW
THEY CAN AND CAN
NOT COMPETE."**

Compass CEO Robert Reffkin, after a 16-month lawsuit against Washington's Northwest MLS ended in a settlement.

THE MLS RULE YOU ASSUMED WAS PERMANENT JUST LOST IN COURT.

Compass sued Northwest MLS over fines its agents faced for using "coming soon" pre-marketing. The settlement creates a new "First Look" status, launching September 4, letting a seller market a home for up to 21 days without a public days-on-market clock or price-change history. Reffkin called the old fine structure "the textbook definition of an antitrust violation." He did not call this a one-time fight. Every MLS with a similar rule just watched one of them lose.

WHAT TO CHECK IN YOUR OWN MARKET THIS WEEK:

- 1 Pull your own MLS's actual pre-marketing policy, not the summary version.**
Read the fine schedule for coming-soon or delayed-marketing listings word for word.
- 2 Ask your broker if that policy resembles the one that just lost.**
A rule that fines a brokerage for following a seller's own marketing choice is the exact structure Reffkin's quote is describing.
- 3 Track this, don't assume it's settled.**
A rule that survives this year is not guaranteed to survive next year's lawsuit.

THE TAKEAWAY

MLS RULES USED TO FEEL PERMANENT.

Know your own policy before someone else's
lawsuit rewrites it for you.